

**Department of Veterans Affairs
Network Contracting Office (NCO) 16
Sources Sought Notice (SSN)**

DISCLAIMER: THIS IS A SOURCES SOUGHT NOTICE ONLY. THIS SYNOPSIS IS NOT A REQUEST FOR QUOTE, PROPOSAL, OR BID. This notice is not a solicitation as defined by FAR 2.101, therefore it shall not be construed as a commitment by the Government to enter into a contract, nor does it restrict the Government to an acquisition approach. All information contained in this Sources Sought Notice (SSN) is preliminary as well as subject to amendment and is in no way binding on the Government. Information submitted in response to this notice is voluntary; the Government will not pay for information requested nor will it compensate any respondent for any cost incurred in developing information provided to the Government. The Government is requesting that restrictive or proprietary markings not be used in response to this notice. If a solicitation is released, it will be synopsisized on SAM.gov website or GSA. It is the responsibility of the interested parties to monitor these sites for additional information pertaining to this SSN.

1. Title: Omnicell Service Agreement

2. Purpose: The purpose of this SSN is to identify potential sources which will aid in defining the procurement strategy (e.g., set-aside, sole source, unrestricted) for a solicitation the VA intends on issuing shortly for the following:

Model / Part Number	Item /Description of Supplies/Equipment	Qty
	Omnicell authorized service/maintenance contract needed for Omnicell Systems and associated equipment. The Veteran's Health Care System of the Ozarks (VHSO) owns and operates Omnicell Secure Storage Systems and Associated Equipment that requires an annual service agreement to include telephone support, remote support, and on site remedial/preventive service. POP: Base plus four option years.	<i>Base plus 4 option years</i>

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The anticipated Small Business Administration (SBA) size standard for the North American Industry Classification System (NAICS) code 811210 is 34 Million.

3. Responses Requested: The following questions must be answered in response to this SSN.

Sending an email confirming you are an interested vendor, or capability statement and vendor contact information alone will not be considered. If all questions in the SSN are not answered, the vendor's response shall be considered non-responsive to the SSN:

A. Is the Vendor an authorized service provider with access to Original Equipment Manufacturer (OEM) parts which are required in performance of this requirement? The VA does not accept grey market items and therefore the Vendor shall attach evidence of this access (Authorized Service Provider letter) to be viewed by the government to be considered as part of the Market Research and responsiveness to this Sources Sought notice.

B. Name of potential Contractor that possesses the capability to fulfill this requirement. Contractors shall also provide the following:

Point(s) of contact name: _____
Address: _____
Telephone number: _____
Email address: _____

Company's business size: _____
Unique Entity Identifier (used on SAMS) #: _____

C. Is your company considered a small business concern, SB, SDVOSB, VOSB, HUBZone, or 8A concern, with the requisite 811210 NAICS code? Please provide proof of qualifications.

D. Is your company available under any Government Wide Agency Contract (GWAC), General Services Administration (GSA) Schedule, Indefinite Delivery Indefinite Quantity (IDIQ), and/or Blanket Purchase Agreement (BPA)? If so, please identify the contract number for the Government to review as part of this Market Research.

4. Opportunity/Market Pricing: VAMC seeks information from potential vendors on their ability to provide the required service agreement. **THIS IS A SOURCES SOUGHT REQUEST FOR INFORMATION ONLY.** Small Business Concerns are encouraged to provide responses to this SSN to assist the VAMC in determining potential levels of competition and general market pricing available in the industry. Therefore, vendors are requested to submit estimated market research pricing along with their responses to the above. The estimated pricing will be considered when determining the procurement strategy for the forthcoming solicitation.

5. Instructions and Response Guidelines: Questions regarding this SSN shall be submitted no later than 11:00am (CST), March 05, 2026, via email to William.Shaver@va.gov

SSN responses are due by 07:00am (CST), Tuesday, March 10, 2026; size is limited to 8.5 x 11 inches, 12-point font, with 1-inch margins in Microsoft Word format via email to William.Shaver@va.gov The subject line shall read: VAMC Omnicell Service Agreement. **NO SOLICITATION EXISTS AT THIS TIME.** There is no page limitation on subparagraphs 3(a) - 3(f).

Please supply the information you consider relevant to address the specific inquiries related to the SSN. The provided information will be used exclusively by MEDVAMC for "Market Research" purposes

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and will remain within the VAMC Purchasing and Contract Team. **If no responses are received from an authorized service provider, this action will be sole-sourced to the manufacturer or authorized service provider.**

7. Contact Information:

William Shaver

William.Shaver@va.gov

Your response to this notice is greatly appreciated!

DISCLAIMER: This notice is issued solely for informational and planning purposes and does not constitute a solicitation. Responses to this notice are not offers and cannot be accepted by the Department of Veterans Affairs to form a binding contract. Respondents are solely responsible for all expenses associated with responding to this notice.

Background:

Statement of Work
Omnicell Secure Storage Systems and Associated Equipment

Background/ Scope

The Veteran's Health Care System of the Ozarks (VHSO) owns and operates Omnicell Secure Storage Systems and Associated Equipment that requires an annual service agreement to include telephone support, remote support, and on site remedial/preventive service.

Objectives

- Ensure all equipment is maintained to operate in a correct and safe manner as intended and designed by the Original Equipment Manufacturer (OEM) and are in compliance with applicable local, state, and federal regulations. Additionally, ensure that maintenance and services are performed by Omnicell authorized service providers in accordance with terms and conditions of contract 36F79723D0073.
- Ensure the software operates as designed and is updated with the latest versions.
- Ensure equipment downtime is kept to a minimum.

Tasks

- Provide telephone support Monday-Friday 8am-5pm, CST; Technical and Clinical Applications.
- Provide emergency repair on equipment when notified of corrective action need by Biomed Representative, with one business day on site response time.
- Include coverage of parts, labor, and travel to complete corrective maintenance.
- Provide Priority parts delivery, including overnight shipment.
- Provide licenses and updates for software and Operating Systems (OS).
- Provide database updates.
- Provide interface maintenance.

Delivery

- On-site work should be completed between the hours of 8am and 4:30pm CST, Monday through Friday, excluding holidays.

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- If Biomed Representative agrees to after hours billable service; Labor and Travel will be at the vendor's preferred contract billing rate at the contract start date. No billable service to be performed without a separate PO, and approved by the Contracting Officer.
- Biomed Representative will be informed in the following situations:
 - To schedule any work.
 - After arriving on site, but before any work is started.
 - To provide an approximate timeframe for the work.
 - As soon as it is known that the work will take longer than expected.
 - At completion of work prior to leaving the facility.
 - To report any incomplete aspects of the work or issues that could not be corrected during the visit.
 - To provide a written plan for corrective action for any work that cannot be completed within 24 hours. Plan must be provided to and approved by Biomed Representative.
- Vendor will provide documentation for each occurrence that service is provided.
 - Documentation to be provided within 5 business days of work completion.
 - Service reports shall be provided for all service activities including preventive maintenance, emergency repair, and safety inspections, and must contain the following information:
 - a) Name of Site
 - b) SR Number
 - c) Tech Name
 - d) Date and Time
 - e) Issue Reported By *If applicable*
 - f) Product
 - g) Problem Area *if applicable*
 - h) Resolution *if applicable*
 - i) Serial Number Serviced or Replaced
 - j) Signature of Pharmacy Staff member who witnessed service event (available upon request within 90 days of service date)
 - Service Reports will be e-mailed at the completion of work or when the problem resolution is set to complete.
 - Electronic copy sent to COR via email.
- Invoices submitted monthly, in arrears via Tungsten.

Government-Furnished Property

Equipment:

Item#	Serial Number	Product Description	Product Model
1	1415002EST028661	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
2	1415002EST028701	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012

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3	1415002EST028512	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
4	1415002EST029216	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
5	1415002EST028951	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
6	1415002EST028662	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
7	1415002EST028874	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
8	1415002EST025087	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
9	1415002EST025139	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
10	1415002EST028481	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
11	1415002EST028609	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
12	1415002EST028844	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
13	1415002EST029011	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
14	1415002EST029045	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
15	1415002EST028980	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
16	1415002EST029002	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
17	1415002EST028471	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
18	1415002EST029193	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
19	1415002EST028474	SV-FLEX LOCK 3.0 WITH	SRD-OPT-012

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		50 FT CABLE,INSTL	
20	1415002EST028566	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
21	1415002EST028655	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
22	1415002EST028693	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
23	1415002EST002521	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
24	1415002EST001540	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
25	1415002EST001447	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
26	1415002EST000899	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
27	1415002EST001886	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
28	1415002EST001460	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
29	1415002EST004938	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
30	1415002EST004926	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
31	1415002EST008508	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
32	1415002EST008485	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
33	1415002EST004950	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
34	1415002EST019228	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
35	1415002EST019545	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012

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36	1415002EST019092	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
37	1415002EST019087	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
38	1415002EST001778	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
39	1415002EST003706	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
40	1415002EST003713	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
41	1415002EST003610	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
42	1415002EST003609	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
43	1415002EST003797	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
44	205979	XT MED 1-4-HEIGHT CABINET	MED-FRM-106
45	205980	XT MED 1-4-HEIGHT CABINET	MED-FRM-106
46	152190	XT MED 1-4-HEIGHT CABINET	MED-FRM-106
47	152191	XT MED 1-4-HEIGHT CABINET	MED-FRM-106
48	205976	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
49	207138	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
50	207139	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
51	205974	XT MED 1-2-HEIGHT CABINET	MED-FRM-104

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52	205978	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
53	204713	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
54	204712	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
55	204708	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
56	204717	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
57	204718	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
58	204714	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
59	204707	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
60	204710	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
61	204709	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
62	199769	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
63	199770	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
64	199771	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
65	160352	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
66	207140	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
67	207137	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
68	207141	XT MED 1-2-HEIGHT	MED-FRM-104

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		CABINET	
69	205977	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
70	205975	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
71	146051	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
72	146052	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
73	145952	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
74	145951	XT MED 1-2-HEIGHT CABINET	MED-FRM-104
75	142451	XT MED 1/2-HEIGHT CABINET	MED-FRM-104
76	142457	XT MED 1/2-HEIGHT CABINET	MED-FRM-104
77	142497	XT MED 1/2-HEIGHT CABINET	MED-FRM-104
78	142396	XT MED 1/2-HEIGHT CABINET	MED-FRM-104
79	142395	XT MED 1/2-HEIGHT CABINET	MED-FRM-104
80	142458	XT MED 1/2-HEIGHT CABINET	MED-FRM-104
81	135992	XT MED 3-CELL CABINET	MED-FRM-103
82	135993	XT MED 3-CELL CABINET	MED-FRM-103
83	135991	XT MED 3-CELL CABINET	MED-FRM-103
84	135990	XT MED 3-CELL CABINET	MED-FRM-103
85	199768	XT MED 2-CELL CABINET	MED-FRM-102

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86	205973	XT MED 2-CELL CABINET	MED-FRM-102
87	136329	XT MED 2-CELL CABINET	MED-FRM-102
88	135980	XT MED 2-CELL CABINET	MED-FRM-102
89	145967	XT MED 2-CELL CABINET	MED-FRM-102
90	204715	XT MED 1-CELL CABINET	MED-FRM-101
91	204719	XT MED 1-CELL CABINET	MED-FRM-101
92	205972	XT MED 1-CELL CABINET	MED-FRM-101
9	205969	XT MED 1-CELL CABINET	MED-FRM-101
94	207924	XT MED 1-CELL CABINET	MED-FRM-101
95	185677	XT MED 1-CELL CABINET	MED-FRM-101
96	185680	XT MED 1-CELL CABINET	MED-FRM-101
97	185679	XT MED 1-CELL CABINET	MED-FRM-101
98	205970	XT MED 1-CELL CABINET	MED-FRM-101
99	207111	XT MED 1-CELL CABINET	MED-FRM-101
100	207112	XT MED 1-CELL CABINET	MED-FRM-101
101	205971	XT MED 1-CELL CABINET	MED-FRM-101
102	185678	XT MED 1-CELL CABINET	MED-FRM-101
103	135988	XT MED 1-CELL CABINET	MED-FRM-101
104	135987	XT MED 1-CELL CABINET	MED-FRM-101
105	146049	XT MED 1-CELL CABINET	MED-FRM-101
106	185676	XT MED 1-CELL CABINET	MED-FRM-101

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107	145950	XT MED 1-CELL CABINET	MED-FRM-101
108	134197	XT MED 1-CELL CABINET	MED-FRM-101
109	134118	XT MED 1-CELL CABINET	MED-FRM-101
110	135989	XT MED 1-CELL CABINET	MED-FRM-101
111	1OQ7WO_02380	FLEXLOCK WITH TEMPCHECK (12FT)2.0	MSA-OPT-017
112	1OQ7WO_02412	FLEXLOCK WITH TEMPCHECK (12FT)2.0	MSA-OPT-017
113	1OQ7WO_02320	FLEXLOCK WITH TEMPCHECK (12FT)2.0	MSA-OPT-017
114	1OQ7WO_02319	FLEXLOCK WITH TEMPCHECK (12FT)2.0	MSA-OPT-017
115	1OQ7WO_02332	FLEXLOCK WITH TEMPCHECK (12FT)2.0	MSA-OPT-017
116	1OQ7WO_02323	FLEXLOCK WITH TEMPCHECK (12FT)2.0	MSA-OPT-017
117	1OQ7WO_02374	FLEXLOCK WITH TEMPCHECK (12FT)2.0	MSA-OPT-017
118	1OQ7WO_02381	FLEXLOCK WITH TEMPCHECK (12FT)2.0	MSA-OPT-017
11	1OQ7WO_02413	FLEXLOCK WITH TEMPCHECK (12FT)2.0	MSA-OPT-017
120	1OQ7WO_02333	FLEXLOCK WITH TEMPCHECK (12FT)2.0	MSA-OPT-017
121	OFLUNI026457	FLEXLOCK WITH TEMPCHECK (12FT) INSTL G4	MSA-OPT-007
122	295406	AUTOGEN SEALER	MAA-SLR-003
123	204716	XT MED AUX 1-CELL CABINET	MED-AUX-101
124	207095	XT MED AUX 2-CELL CABINET	MED-AUX-102

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125	205968	XT MED AUX 2-CELL CABINET	MED-AUX-102
126	207698	XT ANESTHESIA WORKSTATION W/SL PRINTER	ANT-FRM-012
127	207700	XT ANESTHESIA WORKSTATION W/SL PRINTER	ANT-FRM-012
128	207701	XT ANESTHESIA WORKSTATION W/SL PRINTER	ANT-FRM-012
129	207699	XT ANESTHESIA WORKSTATION W/SL PRINTER	ANT-FRM-012
130	LKQF039412	SYRINGE LABEL PRINTER - EPSON & SHELF	ANT-PNT-005
131	LKQF039410	SYRINGE LABEL PRINTER - EPSON & SHELF	ANT-PNT-005
132	LKQF040822	SYRINGE LABEL PRINTER - EPSON & SHELF	ANT-PNT-005
133	NSN	SV-OC REMOTE ACCESS WIN2019,UPG(SINGLE)	OMC-LIC-032
134	NSN	SV-OC REMOTE ACCESS WIN2019,UPG(SINGLE)	OMC-LIC-032
15	NSN	SV-OC REMOTE ACCESS WIN2019,UPG(SINGLE)	OMC-LIC-032
136	NSN	SV-OC REMOTE ACCESS WIN2019,UPG(SINGLE)	OMC-LIC-032
137	NSN	SV-OC REMOTE ACCESS WIN2019,UPG(SINGLE)	OMC-LIC-032
138	NSN	SV-OC REMOTE ACCESS WIN2019,UPG(SINGLE)	OMC-LIC-032

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139	NSN	SV-OC REMOTE ACCESS WIN2019,UPG(SINGLE)	OMC-LIC-032
140	NSN	SV-OC REMOTE ACCESS WIN2019,UPG(SINGLE)	OMC-LIC-032
141	NSN	SV-OC REMOTE ACCESS WIN2019,UPG(SINGLE)	OMC-LIC-032
142	NSN	SV-OC REMOTE ACCESS WIN2019,UPG(SINGLE)	OMC-LIC-032
143	NSN	SV-OC VIRTUAL WIN2019 TEST SERVER	OMC-SRV-094
144	VA05734	OC SERVER WIN2019 21- 175 DEVICES	OMC-SRV-091
145	1415002EST028566	SV-FLEX LOCK 3.0 WITH 50 FT CABLE,INSTL	SRD-OPT-012
146	207146	XT MED 1-4-HEIGHT CABINET	MED-FRM-106

Security Requirements

- Vendors will obtain an access badge from Facility Engineering Department while performing work on-site.
- Vendor will need to have a BAA.
- Electronic Media
 - o Removeable media (USB flash drive, DVD/CD, laptop,...) must be scanned by Biomed Representative prior to use on VHSO equipment.
 - o Media that has contained electronic Patient Information (Hard Drives, RAM,...) must remain in VHSO custody for destruction.
- The contractor, their personnel, and their subcontractors shall be subject to the Federal laws, regulations, standards, and VA Directives and Handbooks regarding information and information system security as delineated in this contract.

VA INFORMATION AND INFORMATION SYSTEM SECURITY/PRIVACY

1. GENERAL

The contractor, their personnel, and their subcontractors shall be subject to the Federal laws, regulations, standards, and VA Directives and Handbooks regarding information and

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information system security as delineated in this contract.

2. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS

a. A contractor/subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees, subcontractors, and affiliates only to the extent necessary to perform the services specified in the contract, agreement, or task order.

b. All contractors, subcontractors, and third-party servicers and associates working with VA information are subject to the same investigative requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors must be in accordance with VA Directive and Handbook 0710, *Personnel Suitability and Security Program*. The Office for Operations, Security, and Preparedness is responsible for these policies and procedures.

c. Contract personnel who require access to national security programs must have a valid security clearance. National Industrial Security Program (NISP) was established by Executive Order 12829 to ensure that cleared U.S. defense industry contract personnel safeguard the classified information in their possession while performing work on contracts, programs, bids, or research and development efforts. The Department of Veterans Affairs does not have a Memorandum of Agreement with Defense Security Service (DSS). Verification of a Security Clearance must be processed through the Special Security Officer located in the Planning and National Security Service within the Office of Operations, Security, and Preparedness.

d. Custom software development and outsourced operations must be located in the U.S. to the maximum extent practical. If such services are proposed to be performed abroad and are not disallowed by other VA policy or mandates, the contractor/subcontractor must state where all non-U.S. services are provided and detail a security plan, deemed to be acceptable by VA, specifically to address mitigation of the resulting problems of communication, control, data protection, and so forth. Location within the U.S. may be an evaluation factor.

e. The contractor or subcontractor must notify the Contracting Officer immediately when an employee working on a VA system or with access to VA information is reassigned or leaves the contractor or subcontractor's employ. The Contracting Officer must also be notified immediately by the contractor or subcontractor prior to an unfriendly termination.

3. VA INFORMATION CUSTODIAL LANGUAGE

a. Information made available to the contractor or subcontractor by VA for the performance or administration of this contract or information developed by the contractor/subcontractor in performance or administration of the contract shall be used only for those purposes and shall not be used in any other way without the prior written agreement of the VA. This clause expressly limits the contractor/subcontractor's rights to use data as described in Rights in Data - General, FAR 52.227-14(d) (1).

b. VA information should not be co-mingled, if possible, with any other data on the contractors/subcontractor's information systems or media storage systems in order to ensure VA requirements related to data protection and media sanitization can be met. If co-mingling must be allowed to meet the requirements of the business need, the contractor must ensure that VA's information is returned to the VA or destroyed in accordance with VA's sanitization requirements. VA reserves the right to conduct on site inspections of contractor and

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subcontractor IT resources to ensure data security controls, separation of data and job duties, and destruction/media sanitization procedures are in compliance with VA directive requirements.

c. Prior to termination or completion of this contract, contractor/subcontractor must not destroy information received from VA, or gathered/created by the contractor in the course of performing this contract without prior written approval by the VA. Any data destruction done on behalf of VA by a contractor/subcontractor must be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, *Records and Information Management* and its Handbook 6300.1 *Records Management Procedures*, applicable VA Records Control Schedules, and VA Handbook 6500.1, *Electronic Media Sanitization*. Self-certification by the contractor that the data destruction requirements above have been met must be sent to the VA Contracting Officer within 30 days of termination of the contract.

d. The contractor/subcontractor must receive, gather, store, back up, maintain, use, disclose and dispose of VA information only in compliance with the terms of the contract and applicable Federal and VA information confidentiality and security laws, regulations and policies. If Federal or VA information confidentiality and security laws, regulations and policies become applicable to the VA information or information systems after execution of the contract, or if NIST issues or updates applicable FIPS or Special Publications (SP) after execution of this contract, the parties agree to negotiate in good faith to implement the information confidentiality and security laws, regulations and policies in this contract.

e. The contractor/subcontractor shall not make copies of VA information except as authorized and necessary to perform the terms of the agreement or to preserve electronic information stored on contractor/subcontractor electronic storage media for restoration in case any electronic equipment or data used by the contractor/subcontractor needs to be restored to an operating state. If copies are made for restoration purposes, after the restoration is complete, the copies must be appropriately destroyed.

f. If VA determines that the contractor has violated any of the information confidentiality, privacy, and security provisions of the contract, it shall be sufficient grounds for VA to withhold payment to the contractor or third party or terminate the contract for default or terminate for cause under Federal Acquisition Regulation (FAR) part 12.

g. If a VHA contract is terminated for cause, the associated BAA must also be terminated and appropriate actions taken in accordance with VHA Handbook 1600.01, *Business Associate Agreements*. Absent an agreement to use or disclose protected health information, there is no business associate relationship.

h. The contractor/subcontractor must store, transport, or transmit VA sensitive information in an encrypted form, using VA-approved encryption tools that are, at a minimum, FIPS 140-2 validated.

i. The contractor/subcontractor's firewall and Web services security controls, if applicable, shall meet or exceed VA's minimum requirements. VA Configuration Guidelines are available upon request.

j. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the contractor/subcontractor may use and disclose VA information only in two other situations: (i) in response to a qualifying order of a court of competent

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jurisdiction, or (ii) with VA's prior written approval. The contractor/subcontractor must refer all requests for, demands for production of, or inquiries about, VA information and information systems to the VA contracting officer for response.

k. Notwithstanding the provision above, the contractor/subcontractor shall not release VA records protected by Title 38 U.S.C. 5705, confidentiality of medical quality assurance records and/or Title 38 U.S.C. 7332, confidentiality of certain health records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse, or infection with human immunodeficiency virus. If the contractor/subcontractor is in receipt of a court order or other requests for the above mentioned information, that contractor/subcontractor shall immediately refer such court orders or other requests to the VA contracting officer for response.

l. For service that involves the storage, generating, transmitting, or exchanging of VA sensitive information but does not require C&A or an MOU-ISA for system interconnection, the contractor/subcontractor must complete a Contractor Security Control Assessment (CSCA) on a yearly basis and provide it to the COTR.

4. INFORMATION SYSTEM DESIGN AND DEVELOPMENT

a. Information systems that are designed or developed for or on behalf of VA at non-VA facilities shall comply with all VA directives developed in accordance with FISMA, HIPAA, NIST, and related VA security and privacy control requirements for Federal information systems. This includes standards for the protection of electronic PHI, outlined in 45 C.F.R. Part 164, Subpart C, information and system security categorization level designations in accordance with FIPS 199 and FIPS 200 with implementation of all baseline security controls commensurate with the FIPS 199 system security categorization (reference Appendix D of VA Handbook 6500, *VA Information Security Program*). During the development cycle a Privacy Impact Assessment (PIA) must be completed, provided to the COTR, and approved by the VA Privacy Service in accordance with Directive 6507, *VA Privacy Impact Assessment*.

b. The contractor/subcontractor shall certify to the COTR that applications are fully functional and operate correctly as intended on systems using the VA Federal Desktop Core Configuration (FDCC), and the common security configuration guidelines provided by NIST or the VA. This includes Internet Explorer 7 configured to operate on Windows XP and Vista (in Protected Mode on Vista) and future versions, as required.

c. The standard installation, operation, maintenance, updating, and patching of software shall not alter the configuration settings from the VA approved and FDCC configuration. Information technology staff must also use the Windows Installer Service for installation to the default "program files" directory and silently install and uninstall.

d. Applications designed for normal end users shall run in the standard user context without elevated system administration privileges.

e. The security controls must be designed, developed, approved by VA, and implemented in accordance with the provisions of VA security system development life cycle as outlined in NIST Special Publication 800-37, *Guide for Applying the Risk Management Framework to Federal Information Systems*, VA Handbook 6500, *Information Security Program* and VA Handbook 6500.5, *Incorporating Security and Privacy in System Development Lifecycle*.

f. The contractor/subcontractor is required to design, develop, or operate a System of Records Notice (SOR) on individuals to accomplish an agency function subject to the Privacy

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Act of 1974, (as amended), Public Law 93-579, December 31, 1974 (5 U.S.C. 552a) and applicable agency regulations. Violation of the Privacy Act may involve the imposition of criminal and civil penalties.

g. The contractor/subcontractor agrees to:

(1) Comply with the Privacy Act of 1974 (the Act) and the agency rules and regulations issued under the Act in the design, development, or operation of any system of records on individuals to accomplish an agency function when the contract specifically identifies:

(a) The Systems of Records (SOR); and

(b) The design, development, or operation work that the contractor/subcontractor is to perform;

(2) Include the Privacy Act notification contained in this contract in every solicitation and resulting subcontract and in every subcontract awarded without a solicitation, when the work statement in the proposed subcontract requires the redesign, development, or operation of a SOR on individuals that is subject to the Privacy Act; and

(3) Include this Privacy Act clause, including this subparagraph (3), in all subcontracts awarded under this contract which requires the design, development, or operation of such a SOR.

h. In the event of violations of the Act, a civil action may be brought against the agency involved when the violation concerns the design, development, or operation of a SOR on individuals to accomplish an agency function, and criminal penalties may be imposed upon the officers or employees of the agency when the violation concerns the operation of a SOR on individuals to accomplish an agency function. For purposes of the Act, when the contract is for the operation of a SOR on individuals to accomplish an agency function, the contractor/subcontractor is considered to be an employee of the agency.

(1) "Operation of a System of Records" means performance of any of the activities associated with maintaining the SOR, including the collection, use, maintenance, and dissemination of records.

(2) "Record" means any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, education, financial transactions, medical history, and criminal or employment history and contains the person's name, or identifying number, symbol, or any other identifying particular assigned to the individual, such as a fingerprint or voiceprint, or a photograph.

(3) "System of Records" means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual.

i. The vendor shall ensure the security of all procured or developed systems and technologies, including their subcomponents (hereinafter referred to as "Systems"), throughout the life of this contract and any extension, warranty, or maintenance periods. This includes, but is not limited to workarounds, patches, hotfixes, upgrades, and any physical components (hereafter referred to as Security Fixes) which may be necessary to fix all security vulnerabilities published or known to the vendor anywhere in the Systems, including Operating

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Systems and firmware. The vendor shall ensure that Security Fixes shall not negatively impact the Systems.

j. The vendor shall notify VA within 24 hours of the discovery or disclosure of successful exploits of the vulnerability which can compromise the security of the Systems (including the confidentiality or integrity of its data and operations, or the availability of the system). Such issues shall be remediated as quickly as is practical, but in no event longer than ____ days.

k. When the Security Fixes involve installing third party patches (such as Microsoft OS patches or Adobe Acrobat), the vendor will provide written notice to the VA that the patch has been validated as not affecting the Systems within 10 working days. When the vendor is responsible for operations or maintenance of the Systems, they shall apply the Security Fixes within ____ days.

l. All other vulnerabilities shall be remediated as specified in this paragraph in a timely manner based on risk, but within 60 days of discovery or disclosure. Exceptions to this paragraph (e.g. for the convenience of VA) shall only be granted with approval of the contracting officer and the VA Assistant Secretary for Office of Information and Technology.

5. INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE, OR USE

a. For information systems that are hosted, operated, maintained, or used on behalf of VA at non-VA facilities, contractors/subcontractors are fully responsible and accountable for ensuring compliance with all HIPAA, Privacy Act, FISMA, NIST, FIPS, and VA security and privacy directives and handbooks. This includes conducting compliant risk assessments, routine vulnerability scanning, system patching and change management procedures, and the completion of an acceptable contingency plan for each system. The contractor's security control procedures must be equivalent, to those procedures used to secure VA systems. A Privacy Impact Assessment (PIA) must also be provided to the COTR and approved by VA Privacy Service prior to operational approval. All external Internet connections to VA's network involving VA information must be reviewed and approved by VA prior to implementation.

b. Adequate security controls for collecting, processing, transmitting, and storing of Personally Identifiable Information (PII), as determined by the VA Privacy Service, must be in place, tested, and approved by VA prior to hosting, operation, maintenance, or use of the information system, or systems by or on behalf of VA. These security controls are to be assessed and stated within the PIA and if these controls are determined not to be in place, or inadequate, a Plan of Action and Milestones (POA&M) must be submitted and approved prior to the collection of PII.

c. Outsourcing (contractor facility, contractor equipment or contractor staff) of systems or network operations, telecommunications services, or other managed services requires certification and accreditation (authorization) (C&A) of the contractor's systems in accordance with VA Handbook 6500.3, *Certification and Accreditation* and/or the VA OCS Certification Program Office. Government-owned (government facility or government equipment) contractor-operated systems, third party or business partner networks require memorandums of understanding and interconnection agreements (MOU-ISA) which detail what data types are shared, who has access, and the appropriate level of security controls for all systems connected to VA networks.

d. The contractor/subcontractor's system must adhere to all FISMA, FIPS, and NIST standards related to the annual FISMA security controls assessment and review and update

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the PIA. Any deficiencies noted during this assessment must be provided to the VA contracting officer and the ISO for entry into VA's POA&M management process. The contractor/subcontractor must use VA's POA&M process to document planned remedial actions to address any deficiencies in information security policies, procedures, and practices, and the completion of those activities. Security deficiencies must be corrected within the timeframes approved by the government. Contractor/subcontractor procedures are subject to periodic, unannounced assessments by VA officials, including the VA Office of Inspector General. The physical security aspects associated with contractor/subcontractor activities must also be subject to such assessments. If major changes to the system occur that may affect the privacy or security of the data or the system, the C&A of the system may need to be reviewed, retested and re-authorized per VA Handbook 6500.3. This may require reviewing and updating all of the documentation (PIA, System Security Plan, Contingency Plan). The Certification Program Office can provide guidance on whether a new C&A would be necessary.

e. The contractor/subcontractor must conduct an annual self assessment on all systems and outsourced services as required. Both hard copy and electronic copies of the assessment must be provided to the COTR. The government reserves the right to conduct such an assessment using government personnel or another contractor/subcontractor. The contractor/subcontractor must take appropriate and timely action (this can be specified in the contract) to correct or mitigate any weaknesses discovered during such testing, generally at no additional cost.

f. VA prohibits the installation and use of personally-owned or contractor/subcontractor-owned equipment or software on VA's network. If non-VA owned equipment must be used to fulfill the requirements of a contract, it must be stated in the service agreement, SOW or contract. All of the security controls required for government furnished equipment (GFE) must be utilized in approved other equipment (OE) and must be funded by the owner of the equipment. All remote systems must be equipped with, and use, a VA-approved antivirus (AV) software and a personal (host-based or enclave based) firewall that is configured with a VA approved configuration. Software must be kept current, including all critical updates and patches. Owners of approved OE are responsible for providing and maintaining the anti-viral software and the firewall on the non-VA owned OE.

g. All electronic storage media used on non-VA leased or non-VA owned IT equipment that is used to store, process, or access VA information must be handled in adherence with VA Handbook 6500.1, *Electronic Media Sanitization* upon: (i) completion or termination of the contract or (ii) disposal or return of the IT equipment by the contractor/subcontractor or any person acting on behalf of the contractor/subcontractor, whichever is earlier. Media (hard drives, optical disks, CDs, back-up tapes, etc.) used by the contractors/subcontractors that contain VA information must be returned to the VA for sanitization or destruction or the contractor/subcontractor must self-certify that the media has been disposed of per 6500.1 requirements. This must be completed within 30 days of termination of the contract.

h. Bio-Medical devices and other equipment or systems containing media (hard drives, optical disks, etc.) with VA sensitive information must not be returned to the vendor at the end of lease, for trade-in, or other purposes. The options are:

(1) Vendor must accept the system without the drive;

(2) VA's initial medical device purchase includes a spare drive which must be installed in place of the original drive at time of turn-in; or

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(3) VA must reimburse the company for media at a reasonable open market replacement cost at time of purchase.

(4) Due to the highly specialized and sometimes proprietary hardware and software associated with medical equipment/systems, if it is not possible for the VA to retain the hard drive, then;

(a) The equipment vendor must have an existing BAA if the device being traded in has sensitive information stored on it and hard drive(s) from the system are being returned physically intact; and

(b) Any fixed hard drive on the device must be non-destructively sanitized to the greatest extent possible without negatively impacting system operation. Selective clearing down to patient data folder level is recommended using VA approved and validated overwriting technologies/methods/tools. Applicable media sanitization specifications need to be preapproved and described in the purchase order or contract.

(c) A statement needs to be signed by the Director (System Owner) that states that the drive could not be removed and that (a) and (b) controls above are in place and completed. The ISO needs to maintain the documentation.

6. SECURITY INCIDENT INVESTIGATION

a. The term “security incident” means an event that has, or could have, resulted in unauthorized access to, loss or damage to VA assets, or sensitive information, or an action that breaches VA security procedures. The contractor/subcontractor shall immediately notify the COTR and simultaneously, the designated ISO and Privacy Officer for the contract of any known or suspected security/privacy incidents, or any unauthorized disclosure of sensitive information, including that contained in system(s) to which the contractor/subcontractor has access.

b. To the extent known by the contractor/subcontractor, the contractor/subcontractor’s notice to VA shall identify the information involved, the circumstances surrounding the incident (including to whom, how, when, and where the VA information or assets were placed at risk or compromised), and any other information that the contractor/subcontractor considers relevant.

c. With respect to unsecured protected health information, the business associate is deemed to have discovered a data breach when the business associate knew or should have known of a breach of such information. Upon discovery, the business associate must notify the covered entity of the breach. Notifications need to be made in accordance with the executed business associate agreement.

d. In instances of theft or break-in or other criminal activity, the contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG and Security and Law Enforcement. The contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

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7. LIQUIDATED DAMAGES FOR DATA BREACH

a. Consistent with the requirements of 38 U.S.C. §5725, a contract may require access to sensitive personal information. If so, the contractor is liable to VA for liquidated damages in the event of a data breach or privacy incident involving any SPI the contractor/subcontractor processes or maintains under this contract.

b. The contractor/subcontractor shall provide notice to VA of a “security incident” as set forth in the Security Incident Investigation section above. Upon such notification, VA must secure from a non-Department entity or the VA Office of Inspector General an independent risk analysis of the data breach to determine the level of risk associated with the data breach for the potential misuse of any sensitive personal information involved in the data breach. The term 'data breach' means the loss, theft, or other unauthorized access, or any access other than that incidental to the scope of employment, to data containing sensitive personal information, in electronic or printed form, that results in the potential compromise of the confidentiality or integrity of the data. Contractor shall fully cooperate with the entity performing the risk analysis. Failure to cooperate may be deemed a material breach and grounds for contract termination.

c. Each risk analysis shall address all relevant information concerning the data breach, including the following:

- (1) Nature of the event (loss, theft, unauthorized access);
- (2) Description of the event, including:
 - (a) date of occurrence;
 - (b) data elements involved, including any PII, such as full name, social security number, date of birth, home address, account number, disability code;
- (3) Number of individuals affected or potentially affected;
- (4) Names of individuals or groups affected or potentially affected;
- (5) Ease of logical data access to the lost, stolen or improperly accessed data in light of the degree of protection for the data, e.g., unencrypted, plain text;
- (6) Amount of time the data has been out of VA control;
- (7) The likelihood that the sensitive personal information will or has been compromised (made accessible to and usable by unauthorized persons);
- (8) Known misuses of data containing sensitive personal information, if any;
- (9) Assessment of the potential harm to the affected individuals;
- (10) Data breach analysis as outlined in 6500.2 Handbook, *Management of Security and Privacy Incidents*, as appropriate; and
- (11) Whether credit protection services may assist record subjects in avoiding or mitigating the results of identity theft based on the sensitive personal information that may have been

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compromised.

d. Based on the determinations of the independent risk analysis, the contractor shall be responsible for paying to the VA liquidated damages in the amount of \$_____ per affected individual to cover the cost of providing credit protection services to affected individuals consisting of the following:

- (1) Notification;
- (2) One year of credit monitoring services consisting of automatic daily monitoring of at least 3 relevant credit bureau reports;
- (3) Data breach analysis;
- (4) Fraud resolution services, including writing dispute letters, initiating fraud alerts and credit freezes, to assist affected individuals to bring matters to resolution;
- (5) One year of identity theft insurance with \$20,000.00 coverage at \$0 deductible; and
- (6) Necessary legal expenses the subjects may incur to repair falsified or damaged credit records, histories, or financial affairs.

8. SECURITY CONTROLS COMPLIANCE TESTING

On a periodic basis, VA, including the Office of Inspector General, reserves the right to evaluate any or all of the security controls and privacy practices implemented by the contractor under the clauses contained within the contract. With 10 working-day's notice, at the request of the government, the contractor must fully cooperate and assist in a government-sponsored security controls assessment at each location wherein VA information is processed or stored, or information systems are developed, operated, maintained, or used on behalf of VA, including those initiated by the Office of Inspector General. The government may conduct a security control assessment on shorter notice (to include unannounced assessments) as determined by VA in the event of a security incident or at any other time.

9. TRAINING

a. All contractor employees and subcontractor employees requiring access to VA information and VA information systems shall complete the following before being granted access to VA information and its systems:

- (1) Sign and acknowledge (either manually or electronically) understanding of and responsibilities for compliance with the *Contractor Rules of Behavior*, Appendix E relating to access to VA information and information systems;
- (2) Successfully complete the *VA Cyber Security Awareness and Rules of Behavior* training and annually complete required security training;
- (3) Successfully complete the appropriate VA privacy training and annually complete required privacy training; and
- (4) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system access *[to be defined by the VA program*

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official and provided to the contracting officer for inclusion in the solicitation document – e.g., any role-based information security training required in accordance with NIST Special Publication 800-16, Information Technology Security Training Requirements.]

b. The contractor shall provide to the contracting officer and/or the COTR a copy of the training certificates and certification of signing the Contractor Rules of Behavior for each applicable employee within 1 week of the initiation of the contract and annually thereafter, as required.

c. Failure to complete the mandatory annual training and sign the Rules of Behavior annually, within the timeframe required, is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the training and documents are complete.

1. RECORDS MANAGEMENT REQUIREMENTS

- 1.1 Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.
- 1.2 In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.
- 1.3 In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.
- 1.4 VHA and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of VHA or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to VHA. The agency must report promptly to NARA in accordance with 36 CFR 1230.
- 1.5 The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [contract vehicle]. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to VHA control or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted

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to the Contracting Officer or address prescribed in the [contract vehicle]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph 8.4.

- 1.6 The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and VHA guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.
- 1.7 The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with VHA policy.
- 1.8 The Contractor shall not create or maintain any records containing any non-public VHA information that are not specifically tied to or authorized by the contract.
- 1.9 The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.
- 1.10 The VHA owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which VHA shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.
- 1.11 Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take VHA-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

Place of Performance

- Work will be performed on equipment at the following locations:
 - o Fayetteville, AR campus, 1100 N College Ave, Fayetteville, AR 72703
 - o Springfield, MO CBOC, 1850 W Republic St, Springfield, MO 65807
 - o Branson, MO CBOC, 5571 Gretna Rd, Branson, MO 65616
 - o Ft. Smith, AR CBOC, 5700 Phoenix Ave, Fort Smith, AR 72903
 - o Joplin, MO CBOC, 3015 Connecticut Ave, Joplin, MO 64804
- Work may be performed remotely. All necessary security and privacy issues will be addressed and complied with by the Vendor before any remote connection or service is performed. Remote service access is extremely limited due to the heightened security requirements on our information networks. Vendor requests might not be approved.
- Equipment may not be removed from the facilities for service without authorization from Biomed Representative.

Period of Performance

- May 1, 2026 through April 30, 2027
- Provide Option years to run from May 1- April 30, consecutively.

DISCLAIMER

This RFI is issued solely for information and planning purposes only and does not constitute a solicitation. All information received in response to this RFI that is marked as proprietary will be handled accordingly. In accordance with FAR 15.201(e), responses to this notice are not offers

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and cannot be accepted by the Government to form a binding contract. Responders are solely responsible for all expenses associated with responding to this RFI.

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